

Introduction to Constitution.

It is a sovereign socialist secular democratic republic with a parliamentary system of government. The Republic is governed in terms of the Constitution of India which was adopted by the constituent Assembly on 26th November 1949 and came into force on 26th January, 1950. Constitution provides for a parliamentary form of government which is federal in structure with certain unitary features. The Constitutional head of the executive of the union is the President. As per Article 79 of the Constitution of India, the Council of the Parliament of the union consists of the President and two houses known as the Council of states (Rajya Sabha) and the house of people (Lok Sabha). Article 74(1) of the Constitution provides that there shall be a council of ministers with the Prime Minister as its head to aid and advise the Prime Minister. President, who shall exercise his/her functions in accordance to the advice. The real executive power is thus

vested in the Council of Ministers with the Prime Minister as its head.

The vast majority of contemporary constitutions describe the basic principles of the state, the structures and processes of government and the fundamental rights of citizens in a higher law that cannot be ~~unilaterally~~ unilaterally changed by an ordinary legislative act. This higher law is usually referred to as a constitution.

Who wrote original Constitution of India?

Prem Behari Narain Raizada the man who wrote ^{by} hand the original constitution of India.

Definition of constitution?

(a) a written instrument embodying the rules of a political or social organization.

(b) the mode in which a state or society is organized.

(c) the manner in which sovereign power is distributed.

Sources and framing of Indian constitution.

Constitution is the system of basic principles which governs a country, state, company or the like. It is the backbone of our country's democracy. Indian constitution is the longest written constitution in the world containing 395 Articles, 22 parts and 12 schedules. India's Constitution was drawn up by a Representative Assembly. The Assembly under the Chairmanship of Dr. B. R. Ambedkar, formed a drafting committee to create a constitution for India. The first meeting of the Assembly was on 9 December 1946. On 26 November 1949 the Indian constitution was adopted and came into force on 26 January 1950.

The sources of Indian Constitution are:-

① United States of America.

Impeachment of President:-

Article 61 of the Constitution calls for the president of India to be

Impeached. The president may be disqualified from office for breach of the constitution by impeachment. Impeachment proceedings may be levied at any parliament house.

• Removal of Judges :- Article 124(4) of the constitution allows the president to remove a judge for proven misconduct or incapacity if the parliament approves a majority of the total membership of each house for impeachment and not less than two-thirds of the members of each house present.

• Fundamental Rights :- Article 12 to 32 of the constitution of India include all the fundamental rights :- Basic rights are the fundamental human rights given to the country's people in order to ensure them of an equal place in society.

Judicial Independence :- The idea of judicial independence is that the judiciary should be separate from other government branches.

Preamble :- The Preamble is an introduction to the constitution. It guarantees justice, freedom,

equality for all Indian citizens and foster fraternity among the people.

Judicial Review:- The Judicial Review provision gives the Judiciary an upper hand in interpreting the Constitution. Therefore, the Judiciary can annul any order by the legislature or executive if that order conflicts with the Country's Constitution.

Functions of president and vice president:- The president of India is the head of the state and the commander-in-chief of the Indian Armed Forces.

Article 63 of the Indian Constitution states that "There shall be a Vice President of India." The Vice President shall serve as President in the absence of a President by reason of death, resignation, impeachment or other circumstances. India's vice president is now ex officio secretary of Rajya Sabha.

2. The United Kingdom.

Single citizenship:- India's Constitution

grants the country's residents single citizenship. The residents of the country are all citizens regardless of the states or territories in which they live.

Legislative Procedure:- Legislative proposals shall be brought in the form of a bill before either Parliament House of India. A bill is the draft legislative legislation that, when passed by both parliamentary houses and approved by the President, becomes a Parliamentary act.

Rule of Law:- This essentially states that a state is governed by the laws of that country, not by the representatives or the citizens and it states that everybody is equal before the law; including the ones who make it. Article 14 of the constitution of India confides the rule of Law.

Cabinet System:- A group of persons appointed by a head of state or a prime Minister to head the government's executive departments and serve as official advisers.

Parliament form of Government:-

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Page No.	
Date	

The president is the head of state and the head of government is the Prime Minister. In such a form of government, a cabinet of ministers headed by the Prime Minister, governs the country. The parliament consists of two houses - Lok SABHA and Rajya SABHA.

3 ~~Iran~~ Ireland.

Directive Principle of State Policy :-
The Directive principle of state policy is stated in Part IV of the Indian constitution, and it explicitly states that it is the state's responsibility to follow certain principles in the law making process. There are three major types of these concepts - Democratic Guidelines, Gandhian Guidelines and Liberal Intellectual Guidelines. Ireland is also borrowing the process for appointing members to the Rajya Sabha.

The method of the election of the head of the state i.e. the President.

4 Australia.

Article 108:- The Joint sitting of both the houses in some cases.

Concurrent list:- It includes the power to be considered by both the union and state government.

Freedom of trade and Commerce:-
Trade and commerce freedom within the nation and between states. Sections 301 to 307 of the Indian constitution set down the same provisions.

5 FRANCE:- The Indian preamble borrowed from the French Constitution its principles of liberty, equality and fraternity. In the tradition of France's Constitution, the Indian states come to be known as the 'Republic of India'.

6 Canada:-

Federal system with a strong central government.

Power sharing between the central government and state governments.

The advisory jurisdiction of the

Supreme Court.

Appointment of the State Governor by the Centre.

7 Soviet Union (USSR).

A constitutionally appointed Planning Commission to supervise the economic growth.

The Fundamental duty, given in Article 51A (g):- Mention the duty of the citizen to protect the environment.

8 South Africa

Gave us the provisions of the amendment process and the election of Members of Rajya Sabha.

9 Germany.

Gave us an immediate clause for the suspension of the fundamental rights.

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Russia.

Ideas of social, economic and political justice in Preamble.

11 Government of India Act 1935.

Federal Legislature: The act stated that there should be two houses of the legislature, i.e. the council of states and a 'Federal Assembly'.

Provincial Autonomy :- Federal Legislature: The act states that there should be two houses of the legislature, i.e. the council of states and a Federal Assembly.

Framing of the Constitution.

India's constitution was adopted by a Constituent Assembly formed under the 1946 cabinet Mission Plan. The constituent Assembly formed under 13 commissions to frame the constitution. A draft constitution was drafted by a seven-member drafting committee under the chairmanship of Dr. B.R. Ambedkar on the basis of the reports from these committees. In January 1948, the drafting constitution was released and citizens were given eight months. After the citizens, the press, the provincial assemblies and the constituent Assembly had debated the draft in the light of the suggestions received, the same was finally

adopted on November 26, 1949 and signed by the president of the Assembly. Thus it took 2 years, 11 months and 18 days for the constituent Assembly to complete the task.

Indian Constitution is borrowed Constitution.

The legislative system, common citizenship, rule of law, Directive state policy etc. all are borrowed features of the Indian constitution. The constitution of India incorporated the best features of a number of existing constitutions.

Features of Indian Constitution.

The constitution of India was created by a constituent assembly and not by the Parliament of India. It was adopted by its people with a declaration in its Preamble. Thus the Parliament of India cannot override the Indian Constitution.

The features of Indian Constitution are:-

- ① Lengthiest Constitution :- It is the lengthiest and longest constitution

in the world. It has 395 Articles and 12 schedules. Also, about 90 Articles have been added since 1951 and there have been more than 100 Amendments.

② Drawn from different sources :-
The basis of the basic structure such as Federal scheme, Judiciary, Governors, Emergency powers, Public service commissions, Administrative details etc. are from the Government of India Act, 1935.

Similarly, the fundamental rights are from the American constitution, directive principles from the Irish Constitution and the Cabinet form of government is from the British Constitution.

3. Federal system and unitary features.
The federal features of governance are a dual system of government i.e. centre and states, the division of powers between the executive, judiciary and legislature which are the three organs of the state, supremacy of the Constitution, independent judiciary and bicameralism.

The Indian Constitution contains all these features. Thus it is a federal

System.

Article 1 of the Indian Constitution clearly mentions that India is a "union of states."

Therefore, this makes the Indian constitution a federal system with unitary features.

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Parliamentary form of Government.
The Indian constitution chose the Parliamentary form of government. In a Parliamentary form of government executive is part of the legislature and there is a collective responsibility of the council of ministers to the legislature.

Also, there exists a majority party rule and the Prime Minister is the leader of the country and the chief Minister is the leader in the state.

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Independent and Integrated Judicial System.

As per the Indian Constitution, a single system of judiciary prevails in India. The Supreme court is at the top, the high courts at

the state level and district and other subordinate courts are below and are subject to the supervision of the high courts. Also, all the levels of courts have a duty of enforcing central as well as state laws.

(6) Rigid and Flexible.

The Indian Constitution is a combination or a blend of rigidity and flexibility.

As per Article 368, some provisions can be amended by a special majority of the Parliament i.e. a $2/3$ rd majority of the members of each house present and voting and majority which is more than 50 percent of the total membership of each house.

Also some other provisions can be amended by a special majority of the Parliament and with the ratification by half of the total states.

(7) Directive Principles.

The Directive Principles of state policies in Part IV of the Constitution intends to make India a welfare state. The Directive principles are not enforceable by the courts for their violation.

However it is a moral obligation of the state to apply these principles in making laws.

Preamble of the Indian Constitution

A Preamble is an introductory statement in a document that explains the document's philosophy and objectives.

In a constitution, it presents the intention of its framers, the history behind its creation and the core values and principles of the nation.

The preamble basically gives idea of the following things / objects:-

- Source of the Indian Constitution.
- Nature of Indian state.
- Statement of its objectives.
- Date of its adoption.

History

The ideals behind the Preamble to India's Constitution were laid down by Jawahar Lal Nehru's Objective Resolution adopted by the Constituent Assembly on January

22, 1947.

- Although not enforceable in court, the Preamble states the objectives of the Indian Constitution, and acts as an aid during the interpretation of Articles when language is found ambiguous.

Components of Preamble.

It is indicated by the Preamble that the source of authority of the constitution lies with the people of India.

Preamble declares India to be a sovereign, socialist, secular and democratic republic.

The objectives stated by the Preamble are to secure justice, liberty, equality to all citizens and promote fraternity to maintain unity and integrity of the nation.

The date is mentioned in the preamble when it was adopted i.e. November 26, 1949.

Status of Preamble.

The preamble being part of the constitution is discussed several times in the supreme court. It can be understood by reading the following two cases.

Berubari Case:- It was used as a reference under Article 143(1) of the constitution which was on the implementation of the Indo-Pakistan agreement related to the Berubari union and in exchanging the enclaves which were decided for consideration by the bench consisting of eight judges.

Through the Berubari Case, the court stated that Preamble is the key to open the mind of the makers but it can not be considered as part of the constitution. Therefore it is not enforceable in a court of law.

Kesavananda Bharati Case:- In this case, for the first time, a bench of 13 judges was assembled to hear a writ petition. The court held that:

- The preamble of the constitution will now be considered as part of the constitution.

The Preamble is not the supreme power or source of any restriction or prohibition but it plays an important role in the interpretation of statutes and provisions of the Constitution.

So it can be concluded that Preamble is part of the Introductory part of the Constitution.

Amendment of the Preamble.

- 42nd Amendment Act, 1976:- After the judgment of the Kesavanand Bharati case, it was accepted that the preamble is part of the Constitution.

- As a part of the constitution, preamble can be amended under Article 368 of the Constitution, but the basic structure of the Preamble can not be amended.

As of now, the preamble is only amended once through the 42nd Amendment Act, 1976.

- The term, Socialist, Secular and Integrity were added to the Preamble through 42nd Amendment Act, 1976.

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Page No.	
Date	

- Socialist and Secular were added between 'sovereign' and 'Democratic'.
- unity of the Nation was changed to unity and integrity of the nation.